

LW5602A: LAW OF CONTRACT I

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Law of Contract I

Subject Code

LW - Law

Course Number

5602A

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW2602 Law of Contract (LLB), LW2602A Law of Contract I, LW5602 Law of Contract (JD), LW6164E Law of Contract (only applicable to students who completed LW6164E before Sem A 2019/20)

Exclusive Courses

LW6564E Law of Contract

Part II Course Details

Abstract

This course aims to -

- provide student a strong foundation in the principles and doctrines of contract law;
- critically analyse the doctrinal and policy tensions which shape contract law;
- marshal the law to solve practical problems;
- examine the linkages between contract law, tort law and the law of unjust enrichment; and
- lay the foundation for study of subject areas grounded in contract law e.g. banking law, corporate law, insurance law.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe and explain the basic principles of contract and the different components of the law of contract.	20	x		
2	Apply the principles of contract law to solve legal problems by: - reading and interpreting cases - interpreting statutes - dealing with facts - conducting legal research - solving problems - developing persuasive arguments - using legal authorities - writing and communicating orally.	40	x	x	
3	Critically analyse and evaluate legal principles and doctrines in the law of contract in the light of doctrinal coherence and the policy objectives of the law.	40	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	Students will be introduced to the basic principles of contract law, including through interactions (in the form of discussions, debates or student presentations) with the lecturer and amongst themselves in the course of the lectures.	1
			2

2		Students will read cases to prepare for lectures, interpret statutes and develop persuasive arguments in class discussion.	2	
3		Students will explore relevant issues of law and address the theoretical underpinnings of various topics.	3	
4	Tutorials	Students will be given the opportunity to clarify or raise further questions with regard to the basic principles of contract taught in the lectures.	1	1
5		Students will apply legal principles to the solution of problems. This may be done in the form of discussions, debate or presentations	2	
6		Students will critically analyse and evaluate legal principles and doctrines In discussions of tutorial questions, whether problem-based or essay-based.	3	

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Assignment	1, 2, 3	30	Students' ability to describe and explain the basic principles and the basic components of the law of contract will be tested.	No

2	Participation in tutorials	1, 2, 3	20	- Students' depth of understanding of the rules and principles. - Students' ability to apply rules and principles discerningly and to defend the precise contours of the law. - Students' ability to critique and evaluate the rules and principles	No
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Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs**Examination:**

- Students' understanding and mastery of the foundational principles and their interaction inter se.
- Students' ability to muster her legal knowledge to address hypothetical problems.
- Students' ability to critique and evaluate the rules and principles.

The use of Generative AI tools is not allowed.

Grading of Student Achievement: Standard (A+, A, A...F).

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

To pass this course, student must obtain an aggregate mark of 50% and a minimum of 50% in each of the continuous assessment and the examination elements of the assessment.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter

To pass this course, student must obtain an aggregate mark of 40% and a minimum of 40% in each of the continuous assessment and the examination elements of the assessment.

To do well in the course, students need to go beyond knowing the legal propositions; a mastery of the subject matter requires an understanding of the potential for further shaping the legal rules and principles and how this can be accomplished. This involves knowing the theoretical underpinnings as well as the policy rationale for the diverse legal rules and principles. As such, the "knowing about" law that comes from reading the textbook is insufficient for scoring good grades; to do well, students need to read the primary material analytically and to develop a deep understanding of the material; it is by reflecting on the material that one appreciates the theoretical and policy dimensions and thereby develop an appreciation for how the law evolves. As the topics which constitute contract law are inter-related, students need to look out for the many linkages between them.

Good preparation involves first, reading the material, second, appreciating how and why the law is shaped the way it is, and third, considering how one may meaningfully apply the law and argue for the adjustment of its contours. Quality class participation and written work should demonstrate deep understanding and thoughtful assessment of the law.

The current plan is for the final examination to be 2-3 hours (TBC). An open book format will be adopted.

Assessment Rubrics (AR)

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

1.1 Perspicacity in identifying the nature of the legal issue/s implicated

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

1.2 Sophistication in analysis

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Assignment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

2.1 Depth of research

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Assignment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

2.2 Synthesis and argument

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Contribution to Knowledge Building (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

3.1 Depth of Understanding

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Contribution to Knowledge Building (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

3.2 Discerning application

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Contribution to Knowledge Building (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

3.3 Critical and evaluative capacity

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

1.1 Perspicacity in identifying the nature of the legal issue/s implicated

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

1.2 Sophistication in analysis

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Assignment (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

2.1 Depth of research

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Assignment (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

2.2 Synthesis and argument

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Contribution to Knowledge Building (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

3.1 Depth of Understanding

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Contribution to Knowledge Building (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

3.2 Discerning application

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Contribution to Knowledge Building (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

3.3 Critical and evaluative capacity

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Nature and purpose of contract law; sources of contract law; offer; invitation to treat; acceptance; intention to create legal relations; consideration; estoppels; certainty and finality; privity; different types of terms such as conditions, warranties, and innominate terms; implied terms.

Detailed Syllabus:

The following topics are studied in detail:

1. Formation of contract; distinction between an offer and an invitation to treat; acceptance; unilateral and bilateral contracts.
2. Consideration; executed and executory consideration; past consideration; distinction between consideration and motive; distinction between sufficiency and adequacy of consideration.
3. Intentional to create legal relations; presumptions in social and commercial contexts.
4. Completeness of terms and uncertainty in contract
5. Terms of a contract;; difference between a condition, warranty and an innominate term; implied terms; distinction between a representation and a term; policing unfair or onerous terms.
6. Frustration of contract
7. Breach and its consequences
8. Remedies for breach of contract; damages; action for a fixed sum; specific performance; injunctions.

Reading List

Compulsory Readings

Title	
1	Texts:
2	McKendrick, Contract Law, 15th ed (Hart Publishing, 2023)
3	Casebook:
4	McKendrick, Contract Law: Text: Cases and Materials, 10th ed (Oxford University Press 2022)

Additional Readings

Title	
1	Edwin Peel, Treitel, The Law of Contract, 15th ed (London: Sweet & Maxwell. 2020)
2	Hall, Stephen, Foundations of Contract Law in Hong Kong, 8th Ed (LexisNexis 2023)
3	See, TT Arvind, Contract Law. Oxford University Press. Third Edition. 2022
4	Ordinances/Bills
5	Sale of Goods Ordinance (Cap 26).
6	Electronic Transactions Ordinance (Cap 553).
7	Supply of Services (Implied Terms) Ordinance (Cap 457).
8	Control of Exemption Clauses Ordinance (Cap 71).
9	Misrepresentation Ordinance (Cap 284).
10	Unconscionable Contracts Ordinance (Cap 87).
11	Law Amendment and Reform (Consolidation) Ordinance (Cap 23).
12	Contracts (Rights of Third Parties) Ordinance (Cap 623).
13	The written law may be downloaded from https://www.elegislation.gov.hk/